OPEN LETTER · STEVE PROTHERO · OWNER

Committee minutes, subcommittees and record-keeping at Greenway Terraces UP12457

Sent 13 October 2026 · To The Executive Committee, Greenway Terraces (UP12457) · Response requested by 10 November 2026

GREENWAY TERRACES | UNITS PLAN 12457

Executive Committee minutes, record-keeping and long-term governance

To: Grady Strata and Facilities

Subject: Greenway Terraces UP12457 – Executive Committee minutes, record-keeping and long-term governance

Dear Grady Strata Management Team,

Executive summary — recommendations and questions

The purpose of this letter is to encourage clear, consistent records that protect Greenway Terraces and support future Executive Committees over the potentially 75–100-year (or longer) life of the development. The following matters are submitted for Grady Strata's advice and the Executive Committee's consideration.

1. Minutes and statutory timing: Confirm when the 29 September 2026 minutes were provided to all owners and whether the 14-day statutory deadline (13 October 2026) was met. Consider a standard format identifying substantive decisions, relevant conditions and outcomes.
2. Financial decisions: Consistently record the supplier, purpose, approved amount and budget allocation for expenditure, and identify the financial reports considered at each meeting.
3. Major works and corporate records: Link resolutions to quotations, contracts, defect and insurance documents, warranties and project-status reports; establish records that remain accessible across committee and strata-manager changes.
4. Subcommittees: Explain how members of the Energy, Security, Building Defects and Communications subcommittees were selected, whether other owners could contribute, and when written terms of reference will be available setting out objectives, authority, responsibilities and reporting.
5. Outstanding work and correspondence: Maintain an action register showing ownership, deadlines and status; record the general subject and outcome of substantive owner correspondence while protecting privacy.
6. Communications and governance: Clarify official communication channels and ask Grady to advise whether the present minute-taking and record-retention practices are suitable for a 151-townhouse corporation, and what improvements it recommends.

These are requests for clarification and practical improvements, not allegations of wrongdoing. Further detail and supporting examples appear below.

I am writing following my review of the minutes of the Greenway Terraces Executive Committee meeting held on 29 September 2026.

I would appreciate your professional advice on whether the current approach to preparing and maintaining Executive Committee minutes represents appropriate governance and record-keeping practice for an owner's corporation of our size and complexity.

At the outset, I want to make clear that this correspondence is not intended as criticism of individual committee members or Grady Strata. My objective is to encourage the development of a sufficiently detailed, reliable and accessible corporate record that will serve Greenway Terraces well into the future.

I believe there is an important distinction between satisfying minimum legislative requirements and establishing governance practices that will protect the interests of owners, future committees and the corporation over its lifetime.

1. The long-term responsibilities of the Owners Corporation
Greenway Terraces comprises 151 townhouses, together with substantial common property, shared infrastructure and associated financial and maintenance responsibilities.

Although the ultimate lifespan of the development will depend on construction quality, maintenance and future investment,

- it is reasonable to plan for an operational life of 75–100 years, potentially considerably longer.
- The buildings may therefore outlast many generations of owners, Executive Committee members and strata managers.

By comparison, an individual Executive Committee may serve for only one or several years. The present committee, like those before it and those that will follow, is effectively a temporary custodian of assets and responsibilities that extend far beyond its own term of office.

Decisions made today concerning

- building defects,
- maintenance,
- infrastructure,
- insurance,
- expenditure and contracts

may remain relevant decades into the future.

Future committees should not have to reconstruct the history of important decisions from incomplete minutes, disconnected correspondence or the recollections of former committee members.

They should inherit a reliable corporate record that explains what decisions were made, what expenditure was authorised, the reasons for significant decisions and what continuing obligations were created. I believe that providing this continuity is one of the most important responsibilities of sound owners corporation governance.

2. Legislative requirements and the distribution of minutes
The ACT Unit Titles (Management) Act 2011 establishes obligations concerning the preparation, distribution and retention of Executive Committee minutes and other records.

Schedule 2, section 2.1(2) requires the Executive Committee to provide copies of meeting minutes to every member of the owners corporation within 14 days of the meeting. The meeting under consideration was held on 29 September 2026, making 13 October 2026 the statutory deadline for distribution.

Could you please confirm the date on which these minutes were distributed to all owners and whether distribution occurred within the statutory period? I raise this simply because the requirement is expressly stated in the legislation, and timely distribution is an important element of accountability.

The Act also requires relevant records to be retained for at least seven years. However, I would suggest that seven years should be regarded as a statutory minimum rather than an appropriate retention period for all important corporate information.

Records concerning major infrastructure, building defects, insurance settlements, significant contracts and substantial capital expenditure may remain relevant for many decades. I would appreciate Grady's advice on how such records are currently identified, indexed, retained and transferred between successive committees and strata managers.

3. Financial reporting and financial decisions
The September minutes record that the financial reports to 30 August 2026 were adopted. However, the minutes do not summarise the corporation's financial position, expenditure against budget, significant commitments, or material financial issues.
I appreciate that more detailed financial reports may exist separately. Nevertheless, it would be helpful if the minutes either included a brief financial summary or clearly identified the reports considered and retained them as part of the meeting record.
Similarly, the minutes record the approval of a quotation from Maritex for a power outage timer for the sewerage system. However, the minutes do not specify the approved

expenditure.
By contrast, the minutes specify the approval of $192 for the purchase of unit numbers for gates. I would suggest adopting a consistent approach in which all expenditure approvals identify the purpose, supplier, approved amount and relevant budget allocation. This would assist future committees in understanding the history of financial commitments and the decisions that authorised them.
4. Building defects and major infrastructure
The minutes record discussions among QBE, Dowse Projects and Grady Strata regarding the commencement of building rectification works. Given the significance of building defects and insurance matters, I believe these issues warrant particularly comprehensive records.

Future committees may need to establish:

- What defects were identified and the decisions made concerning their rectification.
- What works were agreed upon and completed.
- The responsibilities accepted by contractors, insurers and other parties.
- The financial arrangements and relevant warranties.
- Whether any residual defects, risks or continuing obligations remain.

I am not suggesting that commercially sensitive information should necessarily be included in publicly distributed minutes. However, important supporting documents should be clearly linked to the relevant decisions and preserved in the corporation's records. A brief project status report identifying progress, outstanding matters, responsibilities and anticipated milestones would also be valuable.

5. Establishment and membership of subcommittees
The minutes identify four subcommittees dealing with Energy, Security, Building Defects and Communications. I acknowledge that establishing smaller groups to progress particular matters may be a sensible and efficient approach.

However, the minutes do not explain how members were selected or what criteria were used to determine their appointments. I would appreciate clarification on the selection process.

For example, were members appointed

- following expressions of interest,
- on the basis of relevant skills or experience, or through another process?
- Was there consideration of inviting other owners with relevant professional experience or a particular interest in these areas to contribute?

I do not question the suitability of those appointed. My interest is in understanding whether a transparent and consistent selection process exists.

I would also appreciate advice on whether formal terms of reference have been established for each subcommittee. In particular, I would expect these to identify:

- The purpose and specific objectives of each subcommittee.
- Its membership and the basis of appointment.
- The responsibilities and authority delegated to it.
- Whether it may incur expenditure or engage directly with contractors.
- Its expected outcomes and any relevant timeframes.
- Its reporting arrangements and accountability to the full Executive Committee.

If terms of reference have not yet been established, could you please advise when owners can expect them to be approved and made available?

I believe that subcommittees should have clearly defined responsibilities and objectives before undertaking substantive work or exercising delegated authority. Written terms of reference also help future committees understand why each group was established, what it was authorised to do and what outcomes it was expected to achieve. They would additionally provide a useful basis for reviewing whether the continued existence of each subcommittee remains necessary.

Legislative authority and governance of subcommittees
I note that section 44(1) of the ACT Unit Titles (Management) Act 2011 expressly permits an Executive Committee to delegate its functions to a subcommittee or one or more Executive Committee members.

Section 44(2) further permits the owners corporation, by ordinary resolution, to impose conditions or restrictions on the Executive Committee's powers of delegation.

Given these provisions, I would appreciate clarification as to whether the four subcommittees identified in the September minutes have been established solely in an advisory capacity or whether any Executive Committee functions have been formally delegated to them.

If functions have been delegated, could Grady Strata please provide or identify the relevant instruments of delegation, including the functions delegated, any financial authority and applicable limitations?

I would also appreciate clarification regarding the process used to appoint subcommittee members and whether written terms of reference have been established.

Although the legislation does not expressly require terms of reference for every subcommittee, I consider them an important safeguard in defining responsibilities, ensuring accountability and preserving corporate knowledge for future Executive Committees.

Given the owner's corporation's express power under section 44(2) to restrict delegations, I believe it would be appropriate for the Executive Committee to consider adopting formal terms of reference and a documented delegation framework for each subcommittee.

6. Action registers and accountability

The minutes indicate that the Executive Committee and Grady Strata reviewed and updated their respective action lists. However, the minutes do not identify which matters have been completed, which remain outstanding, who is responsible for them, or their anticipated completion dates.

I appreciate that these details may be maintained in separate documents. If so, it would be helpful to understand how these records are linked to committee decisions and whether they are available to owners.

A consolidated action register, identifying responsibilities, deadlines and progress, would provide a useful record of the committee's work. It would also help future committees distinguish between matters that have been resolved and those requiring continued attention. This should reduce unnecessary duplication of work and enable outstanding matters to be transferred efficiently when committee membership changes.

7. Correspondence from owners

The minutes record that correspondence from Unit 151 was considered and responded to (I am one of the owners, and the matter relates to my communications

Nevertheless, a brief description of the general subject matter and any resulting decision would provide a more useful historical record. This would allow future committees to understand whether an issue had previously been considered and how it was resolved, without disclosing personal or confidential information.

I suggest that a consistent approach be established for recording correspondence that results in substantive committee consideration or decisions.

8. Communications and access to information

The minutes also refer to arrangements involving the Communications Subcommittee and the Greenway Terraces Facebook group. I welcome initiatives to improve communication with residents.

However, I believe it would be useful to clarify the distinction between official communications issued by the owner's corporation and informal discussion on social media.

In particular, all owners should have appropriate access to official decisions and information, regardless of whether they participate in Facebook or other online groups. I recently left that group, in part from comments made by Committee members or partners.

A clear communications policy could help establish responsibilities, approval processes and the means by which official information is distributed.

9. Why comprehensive records matter
I believe the benefits of improved record-keeping extend well beyond transparency:

- Continuity: Future committees should be able to understand important decisions without relying on former committee members.
- Financial accountability: Expenditure approvals and contractual commitments should remain identifiable and capable of being verified.
- Asset management: Records of repairs, replacements, defects and major maintenance should form part of the corporation's long-term asset history.
- Legal protection: Contemporary records may provide important evidence concerning contracts, insurance matters, warranties, statutory obligations and disputes.
- Protection of committee members: Clear records can assist members in demonstrating that decisions were properly considered and authorised, and that they acted with appropriate care and diligence.
- Efficiency: Reliable records reduce the risk of repeating investigations, obtaining unnecessary advice or revisiting decisions without knowledge of their history.

These benefits are relevant to the duties of every Executive Committee, not merely the present one. Importantly, I am not proposing that minutes become lengthy transcripts of committee discussions.

Concise minutes, supported by clearly identified and properly retained documents, should be sufficient. The objective is not greater bureaucracy but better corporate knowledge and more reliable accountability.

10. Suggested governance improvements
I would appreciate Grady Strata's professional assessment of whether Greenway Terraces would benefit from adopting a standard approach incorporating:

1. Clear recording of substantive decisions, including relevant conditions and voting outcomes where appropriate.
2. Consistent identification of expenditure approvals and associated financial commitments.
3. A brief financial summary or clearly referenced financial reports accompanying meeting records.
4. A consolidated action register.
5. Written terms of reference for each subcommittee.
6. Regular progress reports for major projects.
7. An organised system linking decisions to relevant quotations, contracts, reports and correspondence.
8. A long-term asset and decision history for significant components of the development.

9. A documented record-retention and handover process to support future committees and changes in strata management.

I recognise that these arrangements must be proportionate to the needs and resources of the corporation. However, I believe most could be implemented without imposing a substantial additional administrative burden.

11. Request for Grady Strata's professional advice
As the professional managing agent, Grady Strata is well placed to advise the Executive Committee on appropriate governance practices. I would therefore appreciate your response to the matters raised, particularly:

- Whether the current format and level of detail in the Executive Committee minutes represent what you consider good practice for an owners corporation comprising 151 townhouses.
- Whether more detailed supporting records are maintained and, if so, how these are linked to the minutes and made accessible to successive committees.
- Whether the corporation has an established long-term document-retention and asset-history system.
- The process used to appoint members to the four subcommittees, whether formal terms of reference exist and when these will be available to owners.
- Whether you would recommend adopting a more comprehensive standard format for recording decisions and financial commitments.
- Confirmation of the distribution date of the 29 September minutes and whether the statutory 14-day requirement was met.

12. Conclusion
I recognise and appreciate the time contributed by volunteer Executive Committee members and the administrative support provided by Grady Strata. My purpose in raising these issues is constructive.

The owners corporation is responsible for substantial assets that will require management, maintenance and financial oversight for many decades. Although the present Executive Committee may hold office for only a relatively short period, its decisions may influence the condition, value and management of the development long after its members have departed.

Each generation of committee members inherits both the assets and the consequences of the decisions made by those who served before them. I believe we owe future committees and future owners a clear, reliable and sufficiently detailed record of the decisions we make today.

Establishing consistent governance and record-keeping arrangements now would be a worthwhile contribution to the long-term management of Greenway Terraces.

I would be grateful if Grady Strata could provide its professional advice on these matters and refer this correspondence to the Executive Committee for consideration.

I also consent to this letter and the response from Grady's and decisions of the committee to be disclosed in future minutes.

Thank you for your assistance.

Yours sincerely,

Stephen Prothero
Owner – Greenway Terraces
Units Plan 12457

Steve Prothero · owner · https://steveprothero-cmyk.github.io/greenway-letters/l/2026-10-13-greenway-terraces-up12457-executive-committee-minutes-record-keeping/